



File No.: EXP202309770

RESOLUTION ON THE EXPIRATION OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On February 23, 2023, BRITISH AIRWAYS PLC (hereinafter BA), the data controller, notified the Spanish Agency for Data Protection (hereinafter AEPD) of a personal data security breach. Following this initial notification, BA provided additional information on two more occasions: on April 11, 2023, when it indicated that it was concluding the investigation of the breach and would provide more information once it had definitive conclusions, and on June 15, 2023, communicating that the investigation of this cyber incident had concluded on May 25, 2023, and providing the conclusions of this investigation.

SECOND: This breach was also reported to the AEPD by IBERIA LÍNEAS AÉREAS DE ESPAÑA, S.A. OPERADORA (hereinafter, IBERIA) on February 23, 2023. IBERIA and BA belong to the IAG (International Airlines Group) group, and, as members of that group, both had Comarch UK Limited (hereinafter, COMARCH) as their provider and data processor for their loyalty system "OnBusiness," where the cybersecurity incident occurred.

THIRD: On July 7, 2023, the director of the Spanish Agency for Data Protection agreed to initiate ex officio preliminary investigation proceedings against BRITISH AIRWAYS PLC (BA) in order to analyze a personal data breach.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

FIFTH: In accordance with the evidence available at this time, it is considered that the breach originated from an attack carried out between January 1, 2023, and February 20, 2023.

LEGAL GROUNDS

I

Competence

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In accordance with the functions conferred on each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigation proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Investigation Actions

Article 67 of the LOPDGDD provides the following regarding preliminary investigation actions:

"1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigation actions in order to achieve a better determination of the facts and circumstances that

justify the processing of the proceedings. The Spanish Agency for Data Protection shall act in any case when it is necessary to investigate treatments involving massive traffic of personal data.

2. The preliminary investigation actions shall be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not exceed eighteen months from the date of the agreement of admission for processing or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication sent to it by the control authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law.”

III

Expiration of Proceedings

In relation to the preliminary actions, the Regulation for the development of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose or prove incompatible with the provisions of the GDPR and the LOPDGDD, in its Article 122.4 states that “The expiration of the term without an agreement to initiate sanctioning proceedings having been issued and notified will result in the expiration of the preliminary actions.”

In accordance with the provisions of the transcribed articles, the preliminary actions shall be deemed expired if more than eighteen months have elapsed from the date of the agreement of admission for processing or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication sent to it by the control authority of another Member State of the European Union.

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date of admission for processing the claim, no decision has been made or notified regarding the initiation of the sanctioning procedure.

In this case, the calculation of the eighteen-month maximum duration of the preliminary proceedings began on January 7, 2023, and is currently still pending completion, therefore it must be declared expired.

IV

Initiation of new investigative proceedings

On the other hand, Article 95.3 of the aforementioned LPACAP states that:

“The expiration will not, by itself, produce the prescription of actions by the individual or the Administration, but expired procedures will not interrupt the prescription period.

In cases where it is possible to initiate a new procedure due to the absence of prescription, the acts and procedures whose content would have remained the same had the expiration not occurred may be incorporated into this new procedure. In any case, in the new procedure, the procedures for allegations, proposal of evidence, and hearing of the interested party must be completed.”

In this regard, the Audiencia Nacional considers (Judgment of July 10, 2013) that “the declaration of expiration of the preliminary investigative proceedings initiated by the Spanish Agency for Data Protection does not pose any obstacle for this entity to initiate or restart other preliminary investigative proceedings regarding the same facts, as long as the prescription period for the administrative infringement under investigation has not elapsed.”

Consequently, considering that the preliminary investigative proceedings are agreed upon ex officio for the purpose of achieving a better determination of the facts and circumstances that justify the processing of the file and given that this investigation has not concluded for the aforementioned purposes, instructions are given to the General Subdirectorate of Data Inspection to initiate new investigative proceedings as the alleged infringement has not prescribed.

Therefore, in accordance with the aforementioned, the Presidency of the Spanish Agency for Data Protection AGREES:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigative proceedings.

SECOND: TO OPEN new investigative proceedings and incorporate into these new proceedings the documentation that comprises the preliminary proceedings declared expired by this act.

THIRD: TO NOTIFY this Resolution to BRITISH AIRWAYS PLC (BA).

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the Audiencia Nacional, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

907-120624

Olga Pérez Sanjuán

The General Subdirector of Data Inspection, in accordance with Article 48.2 of the LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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